

Pitam Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 1 August 2022 · WRIT - C No. 21193 of 2022 · **Writ disposed; petitioner relegated to Para 6.8 objection with stay of recovery.**

HEADNOTE

Without examining merits, the High Court disposed of a challenge to a Power Distribution Corporation recovery notice of Rs. 59,055 by granting liberty to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer within four weeks, directing decision in accordance with law within the next four weeks after hearing, and staying coercive action for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Pitam Singh challenged a 24 June 2022 recovery notice of Rs. 59,055 issued by the Power Distribution Corporation (respondent no. 4), seeking certiorari to quash it and mandamus restraining recovery. Counsel for the Corporation stated on instructions that the petitioner may file an objection to the demand, which would be decided in a time-bound manner. The Division Bench expressed no opinion on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to recovery notice under Para 6.8

HOLDING

Without expressing any opinion on merits, the writ is disposed of with liberty to the petitioner to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer within four weeks. If so submitted, the Executive Engineer shall decide it in accordance with law within the next four weeks after affording a reasonable opportunity of hearing. No coercive action shall be taken on the impugned demand for eight weeks or till disposal of the objection, whichever is earlier. ¶ 4-5

PRINCIPLE TAGS

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay Court relegated the consumer to a Para 6.8 objection before the Executive Engineer, directed time-bound disposal after hearing, and stayed coercive recovery pending that objection. ¶ 4-5

para-6.8-objection-alternate-remedy Writ against the recovery notice was not decided on merits; the statutory Para 6.8 objection was treated as the appropriate remedy. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE RECOVERY NOTICE DATED 24.06.2022 FOR RS. 59,055

Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 4